
MURABAHA FINANCING AGREEMENT
CONTRACT REF: MYB-ISL-2026-1147
DATE: 2 MAY 2026

PARTIES

This Murabaha Financing Agreement ("Agreement") is entered into between:

Bank: Maybank Islamic Berhad, a licensed Islamic financial institution incorporated in Malaysia under the Companies Act 2016, having its registered office at Menara Maybank, 100 Jalan Tun Perak, 50050 Kuala Lumpur, Malaysia ("the Bank")

Customer: Crescent Palm Ventures Ltd, a company incorporated under the laws of the Cayman Islands, operating through its principal place of business at Level 28, Integra Tower, 348 Jalan Tun Razak, 50400 Kuala Lumpur, Malaysia ("the Customer")

CLAUSE 1 – ASSET DESCRIPTION

The Bank agrees to purchase and resell to the Customer a portfolio of palm oil processing equipment ("the Asset"), comprising:

- (a) Two (2) steriliser vessels, model FFB-2000, manufactured by Tetra Pak Processing Equipment Sdn Bhd, serial numbers to be confirmed upon delivery from the manufacturer's Pasir Gudang facility within 60 days of this Agreement;
- (b) One (1) centrifuge separation unit and ancillary pipework, specifications as per Technical Schedule A attached hereto;
- (c) Such additional components as the parties may agree in writing are necessary for operational integration of items (a) and (b).

All items are permissible under Shariah. The Asset is intended for lawful palm oil processing operations in Johor, Malaysia.

CLAUSE 2 – COST PRICE

The Cost Price is RM 12,750,000 (Ringgit Malaysia Twelve Million Seven Hundred Fifty Thousand Only), representing the Bank's confirmed acquisition cost for items (a) and (b) in Clause 1.

The cost of any additional components agreed under Clause 1(c) shall be added to the Cost Price at actual cost, with the Customer's prior written approval, and the Contract Price shall be correspondingly revised.

CLAUSE 3 – PROFIT MARGIN

The Bank's profit for this transaction is fixed at RM 1,912,500 (Ringgit Malaysia One Million Nine Hundred Twelve Thousand Five Hundred Only), representing 15% on the base Cost Price of RM 12,750,000.

Should the Cost Price increase pursuant to Clause 2 (additional components), the profit applicable to the additional amount shall be calculated at the same rate of 15%, and such additional profit shall be incorporated into a supplementary agreement.

CLAUSE 4 – OWNERSHIP AND RISK TRANSFER

The Bank represents that it has placed a confirmed purchase order for items (a) and (b) with the supplier and has made a deposit of 30% of the Cost Price. Full ownership shall vest in the Bank upon the supplier's completion of delivery to the designated site.

Risk and title shall transfer from the Bank to the Customer upon the Bank's receipt of the supplier's delivery confirmation, which is expected within 60 days. The Customer acknowledges this anticipated timeline and agrees to be bound by this Agreement pending completion of delivery.

CLAUSE 5 – CONTRACT PRICE AND PAYMENT TERMS

The base Contract Price is RM 14,662,500, payable as follows:

Down payment:	RM 1,466,250 (due at signing)
Remaining balance:	RM 13,196,250 (60 monthly installments of RM 219,937.50 commencing upon delivery confirmation)

The installment amount for the base Contract Price is fixed. Any supplementary amount arising from Clause 2 shall be subject to a separate repayment schedule to be agreed in writing.

CLAUSE 6 – LATE PAYMENT

Any installment not received by the Bank within 7 days of its due date shall attract a compensation charge (ta'widh) of 1% per annum on the overdue amount, calculated on a daily simple basis.

In addition, the Bank shall charge a documentation and administrative recovery fee of RM 1,500 per overdue installment event, to cover the Bank's reasonable administrative costs of managing the default. This fee is fixed and does not accrue further charges.

CLAUSE 7 – IBRA (EARLY SETTLEMENT)

In the event of early settlement, the Bank's prevailing ibra policy – as published on Maybank Islamic's official schedule from time to time – shall apply. The Customer acknowledges that the Bank's ibra policy may change and that no specific ibra quantum is guaranteed by this Agreement.

CLAUSE 8 – FORCE MAJEURE AND DELIVERY FAILURE

If the supplier fails to deliver the Asset within 90 days of this Agreement due to circumstances beyond the Bank's control, the Bank shall refund the Customer's down payment in full and this Agreement shall be deemed null and void with no liability on either party.

If delivery is delayed beyond 60 days but within 90 days, installments shall not commence until actual delivery, but the Contract Price and profit shall remain unchanged.

CLAUSE 9 – SECURITY AND COLLATERAL

The Customer shall provide the following security:

- (a) First fixed charge over the Asset;
- (b) Assignment of proceeds from the Customer's palm oil off-take agreement with a major purchaser, the identity of which shall be disclosed to the Bank within 30 days;
- (c) Corporate guarantee from the Customer's ultimate holding company incorporated in the Cayman Islands.

CLAUSE 10 – GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by the laws of Malaysia. The parties agree to refer any dispute first to mediation under the rules of the Malaysian Mediation Centre. If mediation fails within 60 days, the dispute shall be referred to arbitration at the Asian International Arbitration Centre (AIAC), Kuala Lumpur.

Notwithstanding the above, the Customer's obligations under the Cayman Islands corporate guarantee in Clause 9(c) shall be governed by the laws of the Cayman Islands.

SIGNED by the authorised representatives of both parties.

[END OF CONTRACT]

AMBIGUITY CHEAT SHEET (for demo reference – not part of contract):
These are the grey areas a real Shariah board would argue about:

CLAUSE 1(a) – Serial numbers "to be confirmed upon delivery"

Compliance view: Asset type is identified, serial numbers are administrative detail. Common commercial practice. PASS.

Devil's Advocate: Bank does not own a specifically identified asset at signing. This introduces Gharar into ownership. CHALLENGE.

CLAUSE 1(c) – "Additional components as parties may agree"

Compliance view: Minor ancillary items, Customer consent required.

Devil's Advocate: Open-ended asset scope at signing = Gharar.

Could be used to inflate the contract post-execution. CHALLENGE.

CLAUSE 2 – Cost price expandable via Clause 1(c)

Compliance view: Customer must approve in writing. Transparent.

Devil's Advocate: A Murabaha contract price must be fixed at

inception. Any post-execution revision is structurally suspect and resembles a revolving credit facility. CHALLENGE.

CLAUSE 4 – Bank has 30% deposit paid, not full ownership yet

Compliance view: Constructive ownership via confirmed PO + deposit is accepted under some BNM guidance.

Devil's Advocate: BNM SPR 1 requires actual or constructive ownership BEFORE the resale. A deposit is not ownership.

Title has not vested. Contract may be void at signing. CHALLENGE.

CLAUSE 6 – RM 1,500 flat admin fee per default event

Compliance view: Fixed flat fee, does not compound. Reasonable cost recovery. Similar to ta'widh in structure.

Devil's Advocate: BNM only recognises ta'widh as compensation.

A separate admin fee on top of ta'widh is a second charge on the same default – effectively doubling the penalty. CHALLENGE.

CLAUSE 7 – Ibra linked to "prevailing published schedule"

Compliance view: Not contractually guaranteed, Bank retains discretion. Acceptable.

Devil's Advocate: Referencing a published policy schedule creates a reasonable expectation in the Customer's mind that ibra will be given. Courts may treat this as a de facto guarantee. CHALLENGE.

CLAUSE 9(b) – Off-take agreement purchaser identity undisclosed

Compliance view: 30-day disclosure window is reasonable in cross-border transactions.

Devil's Advocate: Assigning proceeds from an unidentified counterparty introduces Gharar into the security structure.

CLAUSE 10 – Split jurisdiction (Malaysia + Cayman Islands)

Compliance view: Main contract under Malaysian law. BNM compliant.

Devil's Advocate: A guarantee under Cayman Islands law attached to a Malaysian Islamic contract creates a jurisdiction conflict. If the guarantee is enforced under Cayman law, Shariah principles may not be recognised by the Cayman court. CHALLENGE.